for at least 2 years records of receipts, deliveries, inventories, and use, in sufficient detail to permit an audit that determines for each transaction that the provisions of this regulation have been met. This does not specify any particular accounting method and does not require alteration of the system of records customarily maintained, provided such records supply an adequate basis for audit. Records may be retained in the form of microfilm or other photographic copies instead of the originals.

SEC. 24. *Audit and inspection.* All records required by this regulation shall be made available at the usual place of business where maintained for inspection and audit by duly authorized representatives of NPA.

SEC. 25. *Reports.* Persons subject to this regulation shall make such records and submit such reports to NPA as it shall require, subject to the terms of the Federal Reports Act of 1942 (5 U. S. C. 139–139F).

SEC. 26. *Applications for adjustment and exception.* Any person affected by this regulation may file an application for adjustment or exception upon the ground that it works an undue or exceptional hardship upon him not suffered generally by others in the same trade or industry or that its application to him would not be in the interest of the national defense or in the public interest. In examining requests for adjustment claiming that the public interest is prejudiced by the application of any provision of this regulation, consideration will be given to the requirements of the public health and safety, civilian defense, and dislocation of labor and resulting unemployment that would impair the defense program. Applications shall be in writing, filed in triplicate with NPA, Washington 25, D. C., Ref: NPA Reg. 2, and shall set forth all pertinent facts, the nature of the relief sought, and the justification therefor.

SEC. 27. *Communications.* All communications concerning this regulation shall be addressed to the National Production Authority, Washington 25, D. C., Ref: NPA Reg. 2.

SEC. 28. *Violations.* Any person who wilfully violates any provision of this regulation or any other regulation or order of NPA, or who furnishes false information or conceals any material fact in the course of operation under any such regulation or order, is guilty of a crime and, upon conviction, may be punished by fine or imprisonment or both. In addition, administrative action may be taken against any such person to suspend his privilege of making or receiving further deliveries of materials or using facilities under priority or allocation control and to deprive him of further priorities assistance.

NOTE: All reporting and record-keeping requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

NPA Reg. 2 as amended shall take effect on July 17, 1951.

NATIONAL PRODUCTION AUTHORITY,
MANLY FLEISCHMANN,
Administrator.

LIST A

1. The following items are not subject to any DO ratings issued by or under the authority of NPA at the present time and therefore DO ratings shall not be effective to obtain them:

Communications services.
Crushed stone.
Gravel.
Sand.
Scrap.
Slag.
Steam heat, central.
Transportation services, other than those referred to in subdivision 2 of this list.
Waste paper.
Water.
Wood pulp.

2. Allocation and distribution of the items listed or referred to below are subject to regulation by other Government agencies and such items are therefore not subject to ratings issued by or under the authority of NPA. However, producers of such items are subject to NPA regulations with respect to other materials used by them.

(a) Solid fuels: [1] All forms of anthracite, bituminous, subbituminous, and lignitic coals, and coke and its byproducts.

(b) Gas and gas pipelines: [1] Natural gas, manufactured gas, and pipelines for the movement thereof.

(c) Petroleum and petroleum pipelines: [1] Crude oil, synthetic liquid fuel, their products and associated hydrocarbons, including pipelines for the movement thereof.

(d) Electric power: [1] All forms of electric power and energy.

(e) Radioisotopes, stable isotopes, source and fissionable materials.[2]

(f) Farm equipment: [3] Domestic distribution of equipment manufactured for use on farms in connection with the production or processing of food. Such equipment includes, but is not limited to, the items listed in Schedule I of NPA Order N-55A as the same may be amended or supplemented from time to time.

(g) Fertilizer, commercial: [3] In form for distribution to users.

(h) Food, except in certain cases where used industrially: [3] In general, foods and other agricultural commodities and products are within the jurisdiction of the Department of Agriculture, but those which have industrial uses are within the jurisdiction of NPA when they lose their identity as food or agricultural commodities or products. The respective jurisdictions of the Department of Agriculture and NPA are described generally (and in certain cases, specifically) in an Agreement between the Production and Marketing Administration (Department of Agriculture) and NPA signed on March 30 and April 13, 1951, respectively (16 F. R. 3410), which agreement is referred to in NPA Delegation 10 of April 26, 1951 (16 F. R. 3669).

The Agreement (reference to which should be made) does not attempt to list all foods and agricultural commodities and products which involve industrial uses but does cover the major items as to which there might be a question of jurisdiction. In general, the respective jurisdictions fall within the following categories:

(1) Commodities which are within the jurisdiction of the Department of Agriculture until they enter any manufacturing process which results in their being neither food nor agricultural commodities or products (certain examples of which are listed in the Agreement, such as egg products, fats, oils, grain and grain products, molasses, potatoes, spices, starches, sugar, and tartaric acid).

(2) Commodities which are within the jurisdiction of the Department of Agriculture until the point specified in the Agreement (such as cotton lint and linters, hemp, flax, fiber, skim milk for casein, wool, and mohair).

(3) Commodities which are within the exclusive jurisdiction of the Department of Agriculture (ice, naval stores, tobacco, and tobacco products).

(i) Transportation services (domestic), storage and port facilities.[4]

(j) Products (production and distribution) used in the petroleum industry and listed in NPA Delegation 9 (Feb. 26, 1951), as follows: [5]

(1) Tetraethyl lead fluid.
(2) Petroleum cracking catalysts.
(3) Special inhibitors used in gasoline.
(4) Lubricating oil additives.
(5) Fluids and additives made especially for oil and gas drilling, and demulsifiers.

(k) Ores, minerals, concentrates, residues, and other products (until processing is completed) listed in NPA Delegation 5 (May 22, 1951).[6]

[F. R. Doc. 51-8393; Filed, July 17, 1951; 4:46 p. m.]

[1] Under jurisdiction of the Department of the Interior—E. O. 10161, 15 F. R. 6105; E. O. 10200, 16 F. R. 61; DPA Del. 1, 16 F. R. 738.

[2] Under jurisdiction of the Atomic Energy Commission—60 Stat. 755; 42 U. S. C. et seq.

[3] Under jurisdiction of the Department of Agriculture—E. O. 10161, 15 F. R. 6105; E. O. 10200, 16 F. R. 61; DPA Del. 1, 16 F. R. 738.

[4] Under jurisdiction of the Interstate Commerce Commission—E. O. 10161, 15 F. R. 6105; E. O. 10200, 16 F. R. 61; DPA Del. 1, 16 F. R. 738.

[5] Under jurisdiction of the Department of the Interior—NPA Delegation 9, 15 F. R. 1908.

[6] Under jurisdiction of the Department of the Interior—NPA Delegation 5, 15 F. R. 4907.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 732]

ARIZONA

REVOCATION OF EXECUTIVE ORDER NO. 5522 OF DECEMBER 31, 1930

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (c. 421, 36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 5522 of December 31, 1930, temporarily withdrawing the public lands within a described area in Arizona for classification and in aid of legislation, is hereby revoked.

The lands released from withdrawal by this order are described as follows:

GILA AND SALT RIVER MERIDIAN

T. 36 N., R. 4 E.,
Secs. 1 to 4, inclusive;
Sec. 5, E½;
Sec. 8, E½;
Secs. 9 to 16, inclusive;
Sec. 17, E½.

T. 37 N., R. 4 E.,
Secs. 13 to 17, inclusive;
Secs. 20 to 29, inclusive;
Secs. 32 to 36, inclusive.
T. 36 N., R. 5 E.,
Sec. 2, unsurveyed, that part west of the west rim of Marble Canyon;
Secs. 3 to 9, inclusive;
Secs. 10, 11, 15, and 16, partly unsurveyed, those parts west of the west rim of Marble Canyon;
Sec. 17;
Secs. 18, 19, and 20, those parts north of the north rim of South Canyon;
Sec. 21, that part north of the north rim of South Canyon and west of the west rim of Marble Canyon;
T. 37 N., R. 5 E.,
Secs. 11, 12, 13, and 14, those parts south of the north rim of North Canyon;
Secs. 15 to 24, inclusive;
Sec. 25, unsurveyed, that part west of the west rim of Marble Canyon;
Secs. 26 to 34, inclusive;
Secs. 35 and 36, partly unsurveyed, those parts west of the west rim of Marble Canyon.
T. 37 N., R. 6 E., partly unsurveyed,
Secs. 5, 7, 8, 17, 18, 19, 20, and 30, those parts south and east of the north rim of North Canyon and north and west of the west rim of Marble Canyon.

The areas described aggregate approximately 44,000 acres.

The lands are primarily suitable for grazing. No application for these lands may be allowed under the homestead, small-tract, or desert-land laws unless the land has already been classified as valuable or suitable for such type of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the surveyed public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Office, Phoenix, Arizona, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Manager, Land and Survey Office, Phoenix, Arizona.

OSCAR L. CHAPMAN,
Secretary of the Interior.

JULY 13, 1951.

[F. R. Doc. 51-8245; Filed, July 18, 1951; 8:47 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 8—STATIONS ON THE SHIPBOARD IN THE MARITIME SERVICES

EDITORIAL NOTE: The following correction has been made in F. R. Doc. 51-7320 appearing in the Tuesday, June 26, 1951, issue of the FEDERAL REGISTER:

At page 6096, column 3, § 8.155 (a) (5), the semicolon has been deleted and the following added at the end of the paragraph: "who shall be responsible for the proper functioning of the station equipment."

The above was adopted by the Commission June 26, 1951, and was inadvertently omitted when this section was revised by the Commission's order, which order is hereby corrected.

TITLE 49—TRANSPORTATION

Chapter III—Motor Carrier Claims Commission

PART 600—GENERAL RULES OF PROCEDURE

MISCELLANEOUS AMENDMENTS

The rules of procedure of the Motor Carrier Claims Commission, adopted February 24, 1950 (published in FEDERAL REGISTER March 1, 1950, Title 49, Chapter III, Part 600) are hereby amended as follows:

1. Section 600.23 is revised and amended so that said section shall read as follows:

§ 600.23 *Proposed findings of fact—submitted to a Commissioner or an Assistant Commissioner.* Upon the closing of proof by the parties in any case heard by a Commissioner or an Assistant Commissioner, the parties shall, unless otherwise directed by the Commission, a Commissioner or an Assistant Commissioner, have 15 days from the filing of the transcript within which to file proposed findings of fact and suggested conclusions of law. Such proposed findings of fact and suggested conclusions of law need not be printed. Such proposed findings and suggested conclusions shall, upon the filing of the report, be filed with the original record in the case for consideration of the Commission in connection with any exceptions which may be submitted under § 600.25 of these rules.

2. Section 600.24 is revised and amended so that said section shall read as follows:

§ 600.24 *Report.* After the filing of proposed findings of fact, and suggested conclusions of law, or after expiration of the time for such filings, the Commissioner or Assistant Commissioner shall proceed to ascertain the facts, including ultimate facts, considered by him to be established by the evidence, and make a report thereof to the Commission within 20 days after the filing of proposed findings of fact and suggested conclusions of law or, if none are filed, within 20 days after the expiration of the time for such filings; and when directed by the Commission, he shall also file his recommendations and suggested conclusions of law; and he shall certify the entire record to the Commission. Two copies of this report shall be furnished to the attorneys of record for the interested parties.

3. Paragraph (a) of § 600.25 is revised and amended so that said paragraph shall read as follows: